

24TRCV02766 24TRCV02766

County: los-angeles

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Department: M

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Case Number: 24TRCV02766 Hearing Date: July 31, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Friday – July 31, 2026

Calendar No.

PROCEEDINGS

Ismael

Gonzalez Hernandez v. Volkswagen Group of America, Inc., et al.

24TRCV02766

1.

Ismael Gonzalez

Hernandez's Motion for Attorneys' Fees

TENTATIVE RULING

Ismael Gonzalez Hernandez's Motion for Attorneys' Fees
is granted, in part.

Background

Plaintiff filed the Complaint on August 19, 2024. Plaintiff alleges the following facts. Plaintiff alleges that his 2021 Volkswagen Jetta suffers from electrical, engine, steering, and suspension system defects. Plaintiff sets forth causes of action under the Song-Beverly Act as well as a fourth cause of action for Negligent Repair.

Motion for Attorneys' Fees

Civ. Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiff moves for attorneys' fees as costs pursuant to Civ. Code section 1794(d) as the prevailing party in this action. Neither party disputes the contention that the settlement agreement provided that Plaintiff is the prevailing party and that the instant Court would determine the amount of reasonable attorneys' fees. Thus, the Court will determine the amount of reasonable attorneys' fees incurred via this noticed motion.

"The trial court has "broad authority" to determine the amount of [reasonable attorneys' fees]."

PLCM Group v. Drexler (2000)

22 Cal.4th 1084, 1095. "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." Id.

"California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." Id.

"The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." Ketchum v.

Moses (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Thus, Plaintiff is entitled to attorneys' fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate. Plaintiff requests \$ \$22,656.25 in attorneys' fees.

Plaintiff attached as Exhibit 26 to the declaration of Kevin H. Jacobson a full and detailed accounting of the billing and invoices related to this matter. (Decl., Kevin H. Jacobson, Ex. 26.) Plaintiff also provided a summary of experience and the hourly rates of the attorneys who worked on this case, which range from \$350 to \$550 per hour. (Id. at ¶¶ 6, 32-41).

Defendant opposes the motion and argues that the time expended and hourly rates were excessive and not supported. Defendant contends that the Court should award a lesser amount since Plaintiff fails to establish that the fees are reasonable. *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240. Defendant also argues that no multiplier should be awarded. Defendant concludes that Plaintiff should be awarded no more than \$9,414.50 in attorneys' fees.

"The lodestar adjustment method requires the trial court first to determine a touchstone or lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. For Song-Beverly Consumer Warranty Act claims, [a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998 (internal citations and quotations omitted). "Just as a court has discretion to increase the lodestar under several factors in such a case, it may also decrease it by looking at those same factors, including [...] the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 160–161(internal quotations omitted).

The Court deems that, based on the nature of this case and the complexity of this case, the action does not warrant the addition of any multiplier or a deduction through the imposition of a negative multiplier. The Court finds that some of the hourly rates charged were excessive considering the nature of this case, the

settlement amount, the attorneys' experience and background, the hourly rate in the community, and the type of work undertaken by counsel. The Court finds that \$350/hour is a reasonable hourly rate for the type of work, case, and nature of this case.

The Court declines to reduce the hours spent litigating this action. While there may be certain areas of billing and time spent where an opposing party might have grounds to question, the Court cannot state that the hours expended were unnecessary or unreasonable. However, the Court does reduce the amount requested, that is simply based on an estimated time, to review the opposition, prepare the Reply, and attend the hearing. Plaintiff requested \$4,000.00 for this amount. This amount is reduced to \$1,000.00.

The Court therefore finds that 36.6 hours is a reasonable amount of time expended at the hourly rate of \$350.00/hour, plus \$1,000 for preparing the reply and appearing at the hearing, for a total amount of \$13,810.00.

Therefore, the Court grants Plaintiff's Motion for Attorneys' Fees, in part. Thus, the Court fixes reasonable attorneys' fees in the amount of \$13,810.00.

Plaintiff is ordered to give notice of this ruling.